

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Wednesday, July 1, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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24CV-03398	Edith Bernal vs Foster Poultry Farms, LLC, et al.
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Order to Show Cause Re: Dismissal

Appearance required. Plaintiff is ordered to appear to address the status of prosecution of this matter and set trial dates, having failed to engage in the litigation process or appear at prior hearing dates.

24CV-03606	Bianca Barrera vs Foster Poultry Farms, LLC, et al.
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Order to Show Cause Re: Dismissal

Appearance required. Plaintiff is ordered to appear to address the status of prosecution of this matter and set trial dates, having failed to engage in the litigation process or appear at prior hearing dates.

24CV-04539

Lawler Excavation Pipeline and Utilities, Inc. vs Doug Boyer, et al.

Trial Setting Conference

VACATED. This matter is set for multiple demurrers on July 17, 2026. Selecting trial dates is premature at this juncture.

25CV-00394

Cecilia Alonzo vs Mark Olmos, et al.

Motion for Summary Judgment

The motion for summary judgment is DENIED WITHOUT PREJUDICE.

Code of Civil Procedure section 437c, subdivision (h) states in pertinent part, “If it appears from the affidavits submitted in opposition to a motion for summary judgment . . . that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion . . . or make any other order as may be just.” (Code Civ. Proc. § 437c, subd. (h).)

Here the declaration of John Bell submitted in opposition identified outstanding discovery regarding facts that may exist and be essential for the opposition but cannot be presented as discovery is incomplete.

Accordingly, the motion for summary judgment is denied without prejudice. The motion may be renewed after discovery is complete.

Case Management Conference

CONTINUED ON THE COURT’S OWN MOTION TO March 29, 2027, at 10:00 a.m. in Courtroom 8.

25CV-00854

Anai Monserrat Canela Banda, et al. vs Ismael Morales Andrade, et al.

Motion to be Relieved as Counsel

The unopposed motion by attorney Jeffrey S. Kramer and the law firm of Kramer, deBoer & Keane, LLP, to be relieved as counsel for defendant Ismael Morales Andrade is GRANTED.

The Court will sign the order lodged with the court on June 1, 2026. This order will be effective upon the filing of proof of service of the signed order on the client.

25CV-04495

Ezekiel Torres vs. Jon Abel

Petition for Minor’s Compromise